



Legal Aid Act 1974

1974 CHAPTER 4

An Act to consolidate certain enactments relating to legal aid and legal advice and assistance.

[8th February 1974]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

LEGAL ADVICE AND ASSISTANCE AND LEGAL AID SO FAR AS NOT AVAILABLE UNDER PART II

Legal advice and assistance

1.—(1) Advice and assistance to which this section applies Persons shall, subject to and in accordance with the provisions of this eligible for Part of this Act, be available in England and Wales for any advice and assistance person if—

- (a) his disposable income does not exceed £24·50 a week,
or
- (b) he is (directly or indirectly) in receipt of supplementary benefit under the Ministry of Social Security Act 1966 1966 c. 20. or of family income supplement under the Family Income Supplements Act 1970, c. 55.

and (in either case) his disposable capital does not exceed £250.

(2) Regulations may provide that there shall be substituted—

- (a) for the weekly sum specified in subsection (1) above, such other weekly sum, not less than £20, as may be prescribed by the regulations ;

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- (b) for the capital sum so specified, such other capital sum, not less than £125, as may be so prescribed.

Scope and
general
conditions of
advice and
assistance.

2.—(1) Subject to the following provisions of this section, and to any prescribed exceptions or conditions, section 1 above applies to any oral or written advice given by a solicitor or, if and so far as may be necessary, by counsel—

- (a) on the application of English law to any particular circumstances which have arisen in relation to the person seeking the advice, and
- (b) as to any steps which that person might appropriately take (whether by way of settling any claim, bringing or defending any proceedings, making an agreement, will or other instrument or transaction, obtaining further legal or other advice or assistance, or otherwise) having regard to the application of English law to those circumstances,

and applies to any assistance given by a solicitor or, if and so far as may be necessary, by counsel to any person in taking any such steps as are mentioned in paragraph (b) above, whether the assistance is given by taking any such steps on his behalf or by assisting him in taking them on his own behalf.

(2) Notwithstanding anything in subsection (1) above, section 1 above does not apply to any advice or assistance given to a person in connection with any proceedings before a court or tribunal—

- (a) at a time when a legal aid certificate issued to him in connection with those proceedings is in force, or
- (b) in the case of criminal proceedings, at a time when a legal aid order made in respect of him for the purposes of those proceedings is in force.

(3) Without prejudice to subsection (2) above, section 1 above does not apply to any assistance given to a person by taking on his behalf any step in the institution or conduct of any proceedings before a court or tribunal, or of any proceedings in connection with a statutory inquiry, whether by representing him in those proceedings or by otherwise taking any such step on his behalf (as distinct from assisting him in taking such a step on his own behalf), except—

- (a) in the case of civil proceedings before a court or tribunal, any step which consists only of negotiating on his behalf with a view to a settlement of a claim to which the proceedings relate, and
- (b) any step consisting of such assistance as is mentioned in subsection (4) below.

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(4) Section 1 above also applies to any assistance given by a solicitor to any party to proceedings (whether criminal or civil) before a magistrates' court or to proceedings before a county court, whether by representing him in those proceedings or otherwise in connection with them, where the assistance is given in compliance with a request which is made to the solicitor by the court or given in accordance with a proposal which is made by the solicitor and approved by the court and which (in either case)—

- (a) is so made or approved at a time (whether at or after the beginning of the proceedings) when the solicitor is present within the precincts of the court, but
- (b) is not made or approved at any such time as is mentioned in paragraph (a) or (b) of subsection (2) above.

(5) Except as expressly provided by this Part of this Act or by regulations made under it,—

- (a) the fact that the services of counsel or a solicitor are given by way of advice or assistance shall not affect the relationship between or the rights of counsel, solicitor and client or any privilege arising out of such relationship ; and
- (b) the rights conferred by this Part of this Act on a person receiving advice or assistance shall not affect the rights or liabilities of other parties to any proceedings or the principles on which the discretion of any court or tribunal is normally exercised.

(6) In this section "legal aid certificate" means a certificate required, in accordance with regulations made under section 20 below, to be obtained as a condition of entitlement to legal aid ; "legal aid order" means an order made under section 28 below ; and "statutory inquiry" has the meaning assigned to it by section 19(1) of the Tribunals and Inquiries Act 1971.

1971 c. 62.

3.—(1) Where a person seeks or receives any advice or assistance, then if at any time (whether before or after the advice or assistance has begun to be given) it appears to the solicitor from whom it is sought or received (or, in the case of advice or assistance sought or received from counsel, it appears to the solicitor instructing counsel) that the cost of giving it is likely to exceed the limit applicable under subsection (2) below—

Financial limit on prospective cost of advice and assistance.

- (a) the solicitor shall determine to what extent that advice or assistance can be given without exceeding that limit, and
- (b) shall not give it (or, as the case may be, instruct counsel to give it) so as to exceed that limit except with the approval of the appropriate authority.

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(2) The limit applicable under this subsection is £25 or such larger sum as may be substituted for that sum by regulations.

(3) For the purposes of this section the cost of giving any advice or assistance shall be taken to consist of such of the following as are applicable in the circumstances, that is to say—

(a) any expenses (including fees payable to counsel) which may be incurred by the solicitor or his firm in, or in connection with, the giving of the advice or assistance ;

(b) any charges or fees (not being charges for disbursements) which, apart from section 4 below, would be properly chargeable by the solicitor or his firm in respect of the advice or assistance ; and

(c) in the case of advice or assistance given by a solicitor employed by the Law Society in employment to which section 16 below applies, any charges or fees (not being charges for disbursements) which, if the solicitor had been employed by a firm of solicitors, would, apart from section 4 below, have been properly chargeable by that firm in respect of the advice or assistance ;

and in paragraphs (b) and (c) above “charges for disbursements” means charges in respect of such expenses (including fees payable to counsel) as are mentioned in paragraph (a) above.

(4) In paragraph (b) of subsection (1) above the reference to the approval of the appropriate authority shall, in relation to the giving of advice or assistance in any particular case, be construed as a reference to approval given in accordance with the regulations by such committee or other person or body of persons as, in accordance with the provisions of the regulations and of a scheme, is the appropriate committee, person or body for determining whether approval for the purposes of that paragraph should be given in that case.

(5) In subsection (4) above “scheme” means a scheme for the time being in force under section 15 below, and “the regulations” means any regulations for the time being in force under section 20 below.

Contributions
from persons
receiving
advice or
assistance.

4.—(1) In respect of advice or assistance given to any person (in this section and section 5 below referred to as a “client”), the client shall not, except in accordance with the following provisions of this section, be required to pay any charge or fee.

(2) Where a client's disposable income exceeds £12.50 a week and he is not (directly or indirectly) in receipt of supplementary benefit under the Ministry of Social Security Act 1966 or of

family income supplement under the Family Income Supplements Act 1970, subsection (1) above shall not exempt him from liability to pay, in respect of the advice or assistance, charges or fees up to, but not in the aggregate exceeding, such amount as is applicable to him in accordance with the following provisions of this section. PART I
1970 c. 55.

(3) The amount applicable to a client for the purposes of subsection (2) above, where his disposable income falls within a range specified in the first column of the following Table, is the amount specified in relation to that range in the second column of that Table.

TABLE

<i>Disposable income range</i>	<i>Maximum contribution</i>
Exceeding £12.50 but not exceeding £13.50 a week ...	£1
Exceeding £13.50 but not exceeding £14.50 a week ...	£3
Exceeding £14.50 but not exceeding £15.50 a week ...	£5
Exceeding £15.50 but not exceeding £16.50 a week ...	£7
Exceeding £16.50 but not exceeding £18.50 a week ...	£9
Exceeding £18.50 but not exceeding £20.50 a week ...	£11
Exceeding £20.50 but not exceeding £22.50 a week ...	£13
Exceeding £22.50 but not exceeding £24.50 a week ...	£15

(4) Regulations may provide that for any sum specified in subsection (2) or (3) above there shall be substituted such other sum as may be prescribed by the regulations.

5.—(1) This section applies to any charges or fees which, apart from section 4 above, would be properly chargeable in respect of advice or assistance given to a client, in so far as those charges or fees are not payable by the client in accordance with that section. Payment of charges or fees otherwise than through client's contribution.

(2) In the following provisions of this section "the solicitor"—

- (a) in relation to any advice or assistance given by a solicitor employed by a firm of solicitors or by the Law Society, and so given in the course of that employment, or given by counsel on instructions given to him by a solicitor in the course of such employment, means that firm of solicitors or the Law Society, as the case may be, and

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- (b) in any other case, means the solicitor by whom any advice or assistance is given or, where it is given by counsel, the solicitor on whose instructions counsel gives it.

(3) Except in so far as regulations otherwise provide, charges or fees to which this section applies shall constitute a first charge for the benefit of the solicitor—

- (a) on any costs or expenses which (whether by virtue of a judgment or order of a court or an agreement or otherwise) are payable to the client by any other person in respect of the matter in connection with which the advice or assistance is given, and
- (b) on any property (of whatever nature and wherever situated) which is recovered or preserved for the client in connection with that matter, including his rights under any compromise or settlement arrived at in connection with that matter to avoid or bring to an end any proceedings.

(4) In so far as the charge created by subsection (3) above in respect of any charges or fees to which this section applies is insufficient to meet them, the deficiency shall, subject to subsections (5) and (6) below, be payable to the solicitor out of the legal aid fund.

(5) In the case of advice or assistance given by a solicitor employed by the Law Society in employment to which section 16 below applies, any amount which, apart from this subsection, would be payable out of the legal aid fund under subsection (4) above shall be reduced by an amount representing so much of—

- (a) the remuneration of that solicitor payable by the Law Society, and
- (b) any other expenses incurred by the Law Society in consequence of his being so employed,

as is properly attributable to time spent or work done by him in giving that advice or assistance.

(6) For the purpose of determining what charges or fees would be properly chargeable as mentioned in subsection (1) above, and whether there is a deficiency to be payable out of the legal aid fund in accordance with subsection (4) above and, where applicable, subsection (5) above, charges or fees in respect of advice or assistance given to a client shall, in such circumstances as may be prescribed, be taxed or assessed in such manner as may be prescribed.

Legal aid

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6.—(1) Legal aid to which this section applies shall, subject to and in accordance with the provisions of this Part of this Act, be available for any person whose disposable income does not exceed £1,175 a year ; but a person may be refused legal aid if—

Persons
eligible for
legal aid.

- (a) his disposable capital exceeds £1,200, and
- (b) it appears that he could afford to proceed without legal aid.

(2) Regulations may provide that there shall be substituted—

- (a) for the yearly sum specified in subsection (1) above, such other yearly sum, not less than £700, as may be prescribed by the regulations ;
- (b) for the capital sum so specified, such other capital sum, not less than £500, as may be so prescribed.

7.—(1) Subject to the following provisions of this section, section 6 above applies to legal aid in connection with such proceedings before courts and tribunals in England and Wales as—

Scope and
general
conditions
of legal aid.

- (a) are proceedings of a description mentioned in Part I of Schedule 1 to this Act, except proceedings mentioned in Part II of that Schedule ; and
- (b) are not proceedings in which legal aid may be given under Part II of this Act.

(2) Subject to subsection (3) below, the provisions of Schedule 1 to this Act may be varied by regulations, and the regulations may describe the proceedings to be included or excluded by reference to the court or tribunal, to the issues involved, to the capacity in which the person requiring legal aid is concerned, or otherwise.

(3) Regulations made for the purposes of subsection (2) above shall not provide for giving legal aid in connection with proceedings before any court or tribunal before which persons have no right, and are not normally allowed, to be heard by counsel or a solicitor.

(4) Legal aid shall consist of representation, on the terms provided for by this Part of this Act, by a solicitor and so far as necessary by counsel (including all such assistance as is usually given by a solicitor or counsel in the steps preliminary or incidental to any proceedings or in arriving at or giving effect to a compromise to avoid or bring to an end any proceedings).

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(5) A person shall not be given legal aid in connection with any proceedings unless he shows that he has reasonable grounds for taking, defending or being a party thereto, and may also be refused legal aid if it appears unreasonable that he should receive it in the particular circumstances of the case.

(6) Except as expressly provided by this Part of this Act or by regulations made under it,—

- (a) the fact that the services of counsel or a solicitor are given by way of legal aid shall not affect the relationship between or rights of counsel, solicitor and client or any privilege arising out of such relationship; and
- (b) the rights conferred by this Part of this Act on a person receiving legal aid shall not affect the rights or liabilities of other parties to the proceedings or the principles on which the discretion of any court or tribunal is normally exercised.

Financial
conditions of
legal aid.

8.—(1) Where a person receives legal aid in connection with any proceedings—

- (a) the expenses incurred in connection with the proceedings, so far as they would ordinarily be paid in the first instance by or on behalf of the solicitor acting for him, shall be so paid, except in the case of those paid direct from the legal aid fund as provided by section 10 below;
- (b) his solicitor and counsel shall not take any payment in respect of the legal aid except such payment as is directed by section 10 below to be made out of the legal aid fund;
- (c) he may be required to make a contribution to the legal aid fund in respect of the sums payable out of that fund on his account;
- (d) any sums recovered by virtue of an order or agreement for costs made in his favour with respect to the proceedings shall be paid into the legal aid fund;
- (e) his liability by virtue of an order for costs made against him with respect to the proceedings shall not exceed the amount (if any) which is a reasonable one for him to pay having regard to all the circumstances, including the means of all the parties and their conduct in connection with the dispute.

(2) Subsection (1)(b) above shall not apply to the remuneration of a solicitor by the Law Society in respect of any employment to which section 16 below applies.

(3) Regulations shall make provision as to the court, tribunal or person by whom the amount referred to in subsection (1)(e)

above is to be determined and the extent to which any determination of that amount is to be final.

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(4) For the purpose of any inquiry under this section as to the means of a person against whom an order for costs has been made, his dwelling house and household furniture and the tools and implements of his trade shall be left out of account except in such cases and to such extent as may be prescribed, and except as so prescribed they shall, in all parts of the United Kingdom, be protected from seizure in execution to enforce the order.

9.—(1) Where a person receives legal aid in connection with any proceedings, his contribution to the legal aid fund in respect of those proceedings may include—

Contributions from persons receiving legal aid and charge on property recovered.

- (a) a contribution in respect of income not greater than one third of the amount (if any) by which his disposable income exceeds £375 a year; and
- (b) a contribution in respect of capital not greater than the amount (if any) by which his disposable capital exceeds £250.

(2) Regulations may provide that there shall be substituted—

- (a) for the yearly sum specified in subsection (1) above, such other yearly sum, not less than £250, as may be prescribed by the regulations;
- (b) for the capital sum so specified, such other capital sum, not less than £125, as may be so prescribed.

(3) Where the period of computation used in determining the maximum amount of a person's contribution in respect of income under paragraph (a) of subsection (1) above begins before the date of a change made by regulations under subsection (2) above in the maximum amount of the contribution under that paragraph, then—

- (a) if the period of computation ends two months or more after the time the change takes effect, his maximum contribution in respect of income shall be arrived at by apportioning it between the parts of that period falling before and after that time according to the number of months in each part (but so that any fraction of a month in the second part shall be treated as a complete month), and by giving effect to the change in determining the amount of the contribution in respect of the second part; but
- (b) otherwise the maximum amount of his contribution shall be unaffected by the change.

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(4) A person may be required to make any contribution to the legal aid fund in one sum or by instalments.

(5) If the total contribution to the legal aid fund made by a person in respect of any proceedings is more than the net liability of that fund on his account, the excess shall be repaid to him.

(6) Except so far as regulations otherwise provide, any sums remaining unpaid on account of a person's contribution to the legal aid fund in respect of any proceedings and, if the total contribution is less than the net liability of that fund on his account, a sum equal to the deficiency shall be a first charge for the benefit of the legal aid fund on any property (wherever situated) which is recovered or preserved for him in the proceedings.

(7) The reference in subsection (6) above to property recovered or preserved for any person shall include his rights under any compromise arrived at to avoid or bring to an end the proceedings and any sums recovered by virtue of an order for costs made in his favour in the proceedings (not being sums payable into the legal aid fund under section 8 above).

(8) The charge created by subsection (6) above on any damages or costs shall not prevent a court allowing them to be set off against other damages or costs in any case where a solicitor's lien for costs would not prevent it.

(9) In this section references to the net liability of the legal aid fund on any person's account in relation to any proceedings refer to the aggregate amount of the sums paid or payable out of that fund on his account in respect of those proceedings to any solicitor or counsel (or, in a case where the solicitor acting for a person is a solicitor employed by the Law Society in employment to which section 16 below applies, sums which would have been so payable if the solicitor had not been so employed) and not recouped to that fund by sums which are recovered by virtue of an order or agreement for costs made in his favour with respect to those proceedings.

Remuneration
of persons
giving
legal aid.

10.—(1) Subject to this Part of this Act, a solicitor who has acted for a person receiving legal aid shall be paid for so acting out of the legal aid fund, and any fees paid to counsel for so acting shall also be paid out of that fund.

1967 c. 56.

(2) Subject to any rules of court made for the purposes of section 9 of the Matrimonial Causes Act 1967 (remuneration of persons giving legal aid in undefended matrimonial causes), the sums payable under subsection (1) above shall not exceed those allowed under Schedule 2 to this Act.

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(3) A solicitor who, in the course of employment to which section 16 below applies, acts for a person receiving legal aid shall not be paid for so acting out of the legal aid fund, otherwise than by way of remuneration payable by the Law Society.

(4) Nothing in this section shall prejudice section 7(6)(b) above, and in particular—

- (a) subsections (2) and (3) above shall not affect the sums recoverable by virtue of an order for costs made in favour of a person who has received legal aid or of an agreement for costs so made which provides for taxation; and
- (b) for the purpose of any such order or agreement, the solicitor who acted for the person in whose favour it is made shall be treated as having paid any counsel's fees.

Assessment of resources etc.

11.—(1) References in this Part of this Act to a person's disposable income or disposable capital shall be taken as referring to the rate of his income or amount of his capital after making—

Assessment of
disposable
capital and
income etc.

- (a) such deductions as may be prescribed in respect of the maintenance of dependants, interest on loans, income tax, rates, rent and other matters for which the person in question must or reasonably may provide; and
- (b) such further allowances as may be prescribed to take account of the nature of his resources.

(2) Regulations may make provision as to the manner in which the rate of a person's income and the amount of his capital are to be computed for the purposes of subsection (1) above and in particular for determining whether any resources are to be treated as income or capital and for taking into account fluctuations of income.

(3) The regulations shall include provision for securing that the resources of a person seeking or receiving advice or assistance or legal aid shall be treated as not including the subject matter of the dispute.

(4) Except in so far as the regulations otherwise provide, any resources of a person's wife or husband shall be treated for the purposes of this section as that person's resources, and the regulations may also make provision, in relation to minors and other special cases, for taking into account the resources of other persons.

(5) The regulations may also include, in relation to advice and assistance, provision as to the cases in which a person is

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1966 c. 20.
1970 c. 55.

for the purposes of sections 1 and 4 above to be taken to be (directly or indirectly) in receipt of supplementary benefit under the Ministry of Social Security Act 1966 or of family income supplement under the Family Income Supplements Act 1970.

(6) The regulations shall also include, in relation to legal aid, provision for securing that in computing resources there shall be observed the rules set out in paragraphs 19, 20, 24 and 25 of Schedule 2 to the Ministry of Social Security Act 1966, except that regulations may provide that the reference in the said paragraph 19 to borrowing money shall not apply in any prescribed circumstances.

(7) Subject to the provisions of this section the disposable income and disposable capital of a person applying for legal aid, and the maximum amount of his contribution to the legal aid fund in respect of any proceedings, shall be determined by the Supplementary Benefits Commission, and the Commission may call attention to any special circumstances affecting the maximum amount of the lump sum and periodical payments which he could reasonably make on account of any contribution.

(8) Regulations for the purposes of this section shall be made with the concurrence of the Treasury, and may make different provision in relation to advice and assistance and in relation to legal aid respectively.

Solicitors and counsel

Panels of
solicitors and
counsel.

12.—(1) Panels of solicitors and barristers willing to give advice or assistance or to act for persons receiving legal aid shall be prepared and maintained, and there may be separate panels for different purposes, for different courts and for different districts.

(2) Any practising solicitor or barrister shall be entitled to have his name on the appropriate panels or any of them, unless there is good reason for excluding him arising out of—

(a) his conduct when giving or selected to give advice or assistance, his conduct when acting or selected to act for persons receiving legal aid or his professional conduct generally; or

(b) in the case of a member of a firm of solicitors, that of any person who is for the time being a member of the firm.

(3) Where a barrister or solicitor is aggrieved by any decision excluding him (whether permanently or temporarily) from the panels or any of them, he may appeal against the decision to the High Court, and the High Court (whose decision shall be final) may confirm or quash the decision appealed against or may substitute such decision as the court thinks fit.

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(4) Provision shall be made by rules of court for regulating appeals to the High Court under subsection (3) above, and those rules shall provide for limiting the time within which appeals may be brought.

(5) Where a person is entitled to receive advice or assistance or legal aid, the solicitor to advise or assist or act for him and, if the case requires counsel, his counsel shall be selected from the appropriate panel, and he shall be entitled to make the selection himself; but this subsection shall not prejudice the rights of solicitor or counsel where he has good reason to refuse or give up a case or entrust it to another.

(6) Where a solicitor selected under subsection (5) above is shown on the panel as a member of a firm, he shall advise, assist or act in the name of the firm.

(7) In the preceding provisions of this section, references to acting for a person receiving legal aid shall, in relation to a solicitor, include acting indirectly for such a person, as agent for his solicitor, but so that any selection from the panel of a solicitor to act as agent shall be made by the solicitor for whom he is to act.

Costs of successful unassisted parties

13.—(1) Where a party receives legal aid in connection with any proceedings between him and a party not receiving legal aid (in this and section 14 below referred to as “the unassisted party”) and those proceedings are finally decided in favour of the unassisted party, the court by which the proceedings are so decided may, subject to the provisions of this section, make an order for the payment to the unassisted party out of the legal aid fund of the whole or any part of the costs incurred by him in those proceedings.

Power to award costs out of legal aid fund.

(2) An order may be made under this section in respect of any costs if (and only if) the court is satisfied that it is just and equitable in all the circumstances that provision for those costs should be made out of public funds; and before making such an order the court shall in every case (whether or not application is made in that behalf) consider what orders should be made for costs against the party receiving legal aid and for determining his liability in respect of such costs.

(3) Without prejudice to subsection (2) above, no order shall be made under this section in respect of costs incurred in a court of first instance, whether by that court or by any appellate court, unless—

(a) the proceedings in the court of first instance were instituted by the party receiving legal aid; and

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- (b) the court is satisfied that the unassisted party will suffer severe financial hardship unless the order is made.

(4) An order under this section shall not be made by any court in respect of costs incurred by the unassisted party in any proceedings in which, apart from this section, no order would be made for the payment of his costs.

(5) Without prejudice to any other provision restricting appeals from any court, no appeal shall lie against an order under this section, or a refusal to make such an order, except on a point of law.

(6) In this section "costs" means costs as between party and party; but the costs in respect of which an order may be made under this section include the costs of applying for that order.

Provisions
supplemen-
tary to
section 13.

14.—(1) Regulations may make provision—

- (a) for determining the proceedings which are or are not to be treated as separate proceedings for the purposes of section 13 above, or as having been instituted by the party receiving legal aid for the purposes of subsection (3)(a) of that section;
- (b) for modifying subsection (3)(b) of that section in its application to an unassisted party who is concerned in proceedings only in a fiduciary, representative or official capacity; and
- (c) for regulating the procedure to be followed in connection with orders under that section.

(2) Regulations made by virtue of subsection (1)(c) above may in particular make provision—

- (a) for the reference of applications for orders under section 13 above, or of any question of fact relevant to such applications, for inquiry and report by a master, a registrar or a district registrar, as the case may be;
- (b) for the exercise by a master, a registrar or a district registrar of the powers under that section of a High Court judge or of a judge assigned to a county court district;
- (c) for enabling the Law Society to be heard in connection with any order under that section.

(3) For the purposes of section 13 above proceedings shall be treated as finally decided in favour of the unassisted party—

- (a) if no appeal lies against the decision in his favour;
- (b) if an appeal lies against the decision with leave, and the time limited for applications for leave expires without leave being granted; or

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- (c) if leave to appeal against the decision is granted or is not required, and no appeal is brought within the time limited for appeal ;

and where an appeal against the decision is brought out of time the court by which the appeal (or any further appeal in those proceedings) is determined may make an order for the repayment by the unassisted party to the legal aid fund of the whole or any part of any sum previously paid to him under that section in respect of those proceedings.

(4) Where a court decides any proceedings in favour of the unassisted party and an appeal lies (with or without leave) against that decision, the court may, if it thinks fit, make or refuse to make an order under section 13 above forthwith, but any order so made shall not take effect—

- (a) where leave to appeal is required, unless the time limited for applications for leave to appeal expires without leave being granted ;
- (b) where leave to appeal is granted or is not required, unless the time limited for appeal expires without an appeal being brought.

(5) Where a party begins to receive legal aid in connection with any proceedings after those proceedings have been instituted, or ceases to receive legal aid before they are finally decided or otherwise receives legal aid in connection with part only of any proceedings, the reference in section 13(1) above to the costs incurred by the unassisted party in those proceedings shall be construed as a reference to so much of those costs as is attributable to that part.

Administration and finance

15.—(1) Subject to this Part of this Act, it shall be the responsibility of the Law Society to make arrangements, in accordance with a scheme made by them with the approval of the Lord Chancellor and with the concurrence of the Treasury, for securing that advice and assistance and legal aid are available as required by this Part of this Act and generally to administer this Part of this Act.

Functions of
Law Society.

(2) Any scheme made as mentioned in subsection (1) above may be varied or revoked by a subsequent scheme so made.

(3) The functions of the Law Society under this Part of this Act may be performed by the Council of the Law Society in general consultation with the General Council of the Bar on matters of policy or by any committee of the Council of the Law Society or by any committee set up by a scheme under this section.

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(4) Any committee set up by a scheme under this section may include persons who are not members of the Law Society but who are barristers or solicitors, and there may be paid to members of a committee so set up such fees and allowances (if any) as may be provided by the scheme.

(5) The constitution, quorum and procedure of any committee so set up, and the tenure of office of its members, may be regulated by the scheme, but any such committee shall have power to determine its own procedure so far as not regulated by the scheme.

(6) The functions of the Law Society in making or varying any scheme under this section shall be performed by a committee of the Council of the Law Society whose members shall (except during any vacancy) include not less than three persons nominated by the General Council of the Bar and a person nominated by the Lord Chancellor.

(7) Where a scheme under this section is submitted to the Lord Chancellor for his approval, any member of the committee who was present when the scheme or any provision thereof was considered by the committee, and who then objected to the scheme or to that provision, may inform the Lord Chancellor of his objection; and the Lord Chancellor shall not approve a scheme where he has been informed of an objection under this subsection without first giving the members of the committee an opportunity to make representations about the matter in dispute.

(8) Subject to this Part of this Act, a scheme under this section may include provisions as to the persons by whom and manner in which questions arising in the administration of this Part of this Act are to be determined and as to any other matters incidental to the administration thereof.

(9) The Law Society shall exercise their functions under this Part of this Act under the general guidance of the Lord Chancellor, and as soon as possible after the end of any financial year shall make an annual report to him on the operation and finance of this Part of this Act during that year.

**Employment
of solicitors
by Law
Society.**

16.—(1) The matters which may be included in a scheme under section 15 above shall, without prejudice to the generality of that section, include provisions with respect to the employment of solicitors in employment to which this section applies and, in particular, with respect to—

(a) the circumstances in which solicitors may be so employed, and

(b) the provision of accommodation, staff and other facilities for solicitors so employed.

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(2) This section applies to the employment of solicitors by the Law Society for any one or more of the following purposes, that is to say—

- (a) giving advice and assistance ;
- (b) acting for persons receiving legal aid, either generally or in cases of any such description as may be prescribed ;
- (c) performing any such services as are mentioned in subsection (3) below.

(3) The services referred to in subsection (2)(c) above are services performed by a solicitor for or in connection with any such local organisation as is mentioned in subsection (4) below and consisting—

- (a) of furnishing legal assistance to the organisation in its function of giving advice and guidance to applicants ;
- (b) of promoting contacts between the organisation and solicitors practising in the locality for which the organisation is established, with a view to enabling applicants to obtain the professional services of those solicitors in cases where those services are required ;
- (c) of giving oral advice to applicants, instead of referring them to other solicitors, in cases which can be readily disposed of by such advice.

(4) The local organisations referred to in subsection (3) above are organisations concerned in the giving of advice or guidance (whether generally or with respect to any particular classes of matters) to persons residing in the localities for which the organisations are established ; and in that subsection “applicants”, in relation to any such organisation, means persons who apply to the organisation for advice or guidance or are referred to it with a view to their receiving advice or guidance from the organisation.

(5) In subsections (3) and (4) above “organisation” includes a branch or section of an organisation ; and, in relation to such a branch or section, any reference to the locality for which it is established shall be construed as a reference to the locality for which the branch or section is established.

(6) In relation to any solicitor who in accordance with a scheme is employed by the Law Society in employment to which this section applies, and in relation to any work performed, or other things done or omitted to be done, by any such solicitor in the course of that employment,—

- (a) the enactments relating to solicitors, and
- (b) any rule of law which relates to solicitors, or is applicable to things done, or omitted to be done, by solicitors in their capacity as solicitors,

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shall have effect as if the Law Society were a firm of solicitors ; but nothing in this subsection shall be construed as precluding two or more such solicitors from acting for different parties having opposing or otherwise different interests in relation to the same proceedings or other matter.

(7) In subsection (6) above and in sections 17(2) and 19(1) below, " scheme " means any scheme for the time being in force under section 15 above in so far as it includes any such provisions as are mentioned in subsection (1) above.

Legal aid fund.

17.—(1) The functions of the Law Society under this Part of this Act shall include the establishment and administration of the legal aid fund.

(2) All receipts and expenses of the Law Society attributable to this Part of this Act, including all receipts and expenses attributable to the employment of solicitors in accordance with a scheme in employment to which section 16 above applies, and to work performed, and other things done or omitted to be done, in the course of such employment, shall be paid into and out of the legal aid fund, and the general funds of the Law Society shall be indemnified out of that fund against any liability in respect of those expenses.

(3) The said expenses shall also include—

- (a) any fees and allowances payable to members of a committee by virtue of section 15 above ;
- (b) a proper proportion of any expenses incurred partly in connection with functions under this Part of this Act and partly for other purposes ;
- (c) such sums as may be proper for the use wholly or partly in connection with those functions of property acquired for other purposes.

(4) The said receipts shall also include such sums as may be proper for the use by the Law Society otherwise than in connection with their functions under this Part of this Act of property acquired at the expense of the legal aid fund.

(5) The proper proportion of any expenses, or the proper sum, for the purpose of any question arising under subsection (3) or (4) above shall be determined by the Lord Chancellor.

(6) The sums required to meet payments out of the legal aid fund, after allowing for sums received apart from this provision, shall be paid into that fund by the Lord Chancellor at such times and in such manner as he may with the approval of the Treasury determine, and shall be so paid out of moneys provided by Parliament.

(7) Estimates of the sums so required shall from time to time be submitted to the Lord Chancellor by the Law Society.

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(8) An estimate shall be submitted under subsection (7) above at least once in every financial year at such time as the Lord Chancellor may with the approval of the Treasury direct, and any estimate under that subsection shall be in such form and shall give such particulars as may be so directed.

(9) For the removal of doubts it is hereby declared that subsection (2) above and the other provisions of this Part of this Act requiring anything to be paid into or out of the legal aid fund are not to be taken as requiring the making of an actual payment, so as to prevent the obligation to make it being satisfied in whole or in part by an allowance on account or in any other way; and in this Part of this Act references to payments, to sums paid or payable or to receipts and similar references (whether in connection with that fund or not) shall be read accordingly.

18.—(1) The Law Society shall keep such accounts with Accounts respect to the legal aid fund as the Lord Chancellor may with and audit. the approval of the Treasury direct, and shall prepare in respect of each financial year a statement of accounts in such form as may be so directed.

(2) The accounts shall be audited by persons to be appointed in respect of each financial year by the Lord Chancellor and in accordance with a scheme of audit approved by him, and the auditors shall be furnished by the Law Society with copies of the said statement and shall report to the Lord Chancellor on the accounts and the said statement.

(3) No person shall be qualified to be so appointed auditor unless he is a member of one or more of the following bodies:—

the Institute of Chartered Accountants in England and Wales;

the Institute of Chartered Accountants of Scotland;

the Association of Certified Accountants;

the Institute of Chartered Accountants in Ireland.

(4) So soon as the accounts have been audited, the auditors shall send the Lord Chancellor copies of the statement of accounts and of their report, and the Lord Chancellor shall send a copy of the statement and of the report to the Comptroller and Auditor General.

(5) The Comptroller and Auditor General shall examine every statement and report sent to him under subsection (4) above, and may inspect the accounts kept with respect to the legal aid fund and any records relating thereto, and shall certify every such statement and lay a copy of it together with his report thereon before Parliament.

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Pension
rights of
employees.

19.—(1) The Law Society shall, with the approval of the Lord Chancellor, make arrangements for the provision of pensions, allowances or gratuities to or in respect of persons employed by the Law Society for the purpose of their functions under this Part of this Act, including persons employed in accordance with a scheme in employment to which section 16 above applies and persons so employed for purposes connected with such employment; and any such arrangements may include the establishment and administration, by the Law Society or otherwise, of a pension scheme with or without a pension fund.

(2) If the Lord Chancellor so directs, receipts and expenses of the Law Society attributable to their establishment and administration of a pension scheme under this section shall, notwithstanding anything in section 17 above, be dealt with under the scheme instead of being paid into and out of the legal aid fund.

Miscellaneous and supplemental

Regulations.

20.—(1) The Lord Chancellor may make such regulations as appear to him necessary or desirable for giving effect to, or for preventing abuses of, this Part of this Act; and regulations under this section may make different provision in relation to advice and assistance and in relation to legal aid respectively.

(2) Without prejudice to subsection (1) above or any other provision of this Part of this Act authorising the making of regulations, regulations may—

(a) make provision as to the matters which are or are not to be treated as distinct matters for the purposes of advice or assistance, as to the proceedings which are or are not to be treated as distinct proceedings for the purposes of legal aid, and as to the apportionment of sums recoverable or recovered by virtue of any order for costs made generally with respect to matters or proceedings treated as distinct;

(b) regulate the procedure of any court or tribunal in relation to advice or assistance or legal aid, and in particular make provision—

(i) as to the taxation of costs incurred in connection with proceedings not actually begun; and

(ii) as to the cases in which and extent to which a person receiving advice or assistance or legal aid may be required to give security for costs, and the manner in which it may be given;

(c) make provision as to the information to be furnished by a person seeking or receiving advice or assistance or legal aid;

PART I

(d) make provision as to the cases in which a person may be refused advice or assistance or legal aid by reason of his conduct when seeking or receiving advice or assistance or legal aid (whether in the same or in a different matter) ;

(e) make provision for the recovery of sums due to the legal aid fund and for making effective the charge created by this Part of this Act on property recovered or preserved for a person receiving advice or assistance or legal aid, including provision—

(i) for the enforcement for the benefit of the legal aid fund of any order or agreement for costs made in favour of a person who has received advice or assistance or legal aid ; and

(ii) for making a solicitor's right to payment out of the legal aid fund wholly or partly dependent on his performance of the duties imposed on him by regulations made for the purposes of this paragraph.

(3) Regulations may also modify any provision of this Part of this Act so far as appears to the Lord Chancellor necessary to meet the special circumstances where—

(a) a person seeking or receiving advice or assistance or legal aid—

(i) is not resident in England or Wales ; or

(ii) is concerned in a representative, fiduciary or official capacity ; or

(iii) is concerned jointly with or has the same interest as other persons, whether receiving advice or assistance or legal aid or not ; or

(iv) has available to him rights or facilities making it unnecessary for him to take advantage of this Part of this Act or has a reasonable expectation of receiving financial or other help from a body of which he is a member ;

(b) a person seeks advice or assistance or legal aid in a matter of special urgency ;

(c) a person begins to receive advice or assistance or legal aid after having consulted a solicitor in the ordinary way with respect to the same matter, or ceases to receive advice or assistance or legal aid before the matter in question is finally settled ;

(d) there is any relevant change of circumstances while a person is receiving advice or assistance or legal aid.

(4) Without prejudice to subsection (3)(a) above, regulations may also modify the provisions of this Part of this Act in any

PART I manner for the purposes of the application of those provisions to advice or assistance—

(a) sought or received by a person who is under such age (not exceeding the age of eighteen years) as may be specified in the regulations, or

(b) sought or received on behalf of any such person by his parent or guardian or other person under whose care he is, or by a person acting for the purposes of any proceedings as his next friend or guardian.

(5) Without prejudice to the preceding provisions of this section and any other provision of this Part of this Act authorising the making of regulations, regulations may also make such provision (including provision modifying this Part) as appears to the Lord Chancellor, with the concurrence of the Treasury, to be expedient as to the application of this Part in relation to persons who have been admitted in the Judicial Committee of the Privy Council to bring or defend any appeal in forma pauperis, and to other persons concerned in an appeal to that court commenced before or shortly after legal aid is made available there.

(6) The power of the Lord Chancellor to make regulations under this Part of this Act shall be exercisable by statutory instrument.

(7) Any statutory instrument by which that power is exercised, except one making any such regulations as are mentioned in subsection (8) below, shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(8) Any regulations made for the purposes of section 1(2), 3(2), 6(2), 7(2) or 9(2) above, or containing any provision made for any of those purposes (not being a provision to the same effect as a provision revoked by the regulations), shall not come into force unless or until approved by a resolution of each House of Parliament.

(9) Before making regulations as to the procedure of any court or tribunal, the Lord Chancellor shall so far as practicable consult any rule committee or similar body by whom or on whose advice rules of procedure for the court or tribunal may be made apart from this Part of this Act or whose consent or concurrence is required to any such rules so made.

Advisory
Committee.

21.—(1) The Lord Chancellor shall constitute an advisory committee to advise him on such questions relating to this Part of this Act as he may from time to time refer to them and shall appoint the members of the committee with regard to their knowledge of the work of the courts and social conditions.

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(2) The Lord Chancellor may pay to the members of the advisory committee such travelling and other allowances as he may with the consent of the Minister for the Civil Service determine, and any expenses of the Lord Chancellor under this subsection shall be defrayed out of moneys provided by Parliament.

(3) The Lord Chancellor shall refer the Law Society's annual report on the operation and finance of this Part of this Act to the advisory committee for their consideration and advice and when the committee have considered it shall lay before each House of Parliament a copy of it and of any comments or recommendations made by the committee.

22.—(1) Subject to subsection (2) below, no information Secrecy. furnished for the purposes of this Part of this Act to the Law Society, or to any committee or person on their behalf, in connection with the case of a person seeking or receiving advice or assistance or legal aid shall be disclosed otherwise than—

(a) for the purpose of facilitating the proper performance by any person or body of persons of functions under this Part of this Act ; or

(b) for the purpose of any criminal proceedings for an offence under it or of any report of such proceedings.

(2) Subsection (1) above shall not prevent the disclosure of information for any purpose with the consent of the person in connection with whose case it was furnished and, where he did not furnish it himself, with that of the person or body of persons who did.

(3) A person who, in contravention of this section, discloses any information obtained by him when employed by or acting on behalf of the Law Society shall be liable on summary conviction to a fine not exceeding £100.

(4) Proceedings for an offence under this section shall not be brought without the written consent of the Attorney General.

(5) For the avoidance of doubt it is hereby declared that information furnished to counsel or a solicitor as such by or on behalf of a person seeking or receiving advice or assistance or legal aid is not information furnished to the Law Society or a person on their behalf.

23.—(1) If any person seeking or receiving advice or assistance or legal aid— Proceedings for misrepresentation etc.

(a) wilfully fails to comply with any regulations as to the information to be furnished by him ; or

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(b) in furnishing any information required by the regulations knowingly makes any false statement or false representation,

he shall be liable on summary conviction to a fine not exceeding £100 or to imprisonment for a term not exceeding four months or to both.

1952 c. 55.

(2) Notwithstanding anything in the Magistrates' Courts Act 1952, proceedings in respect of an offence under subsection (1) above may be brought at any time within two years next after the commission of the offence or within six months next after the first discovery of it by the prosecutor, whichever is the shorter.

1959 c. 22.

(3) A county court shall have jurisdiction to hear and determine any action brought to recover the loss sustained by the legal aid fund by reason of the failure of a person seeking or receiving advice or assistance or legal aid to comply with any such regulations as are mentioned in subsection (1) above, or by reason of a false statement or false representation made by such a person in furnishing information for the purposes of this Part of this Act, notwithstanding that the claim in the action is for a greater amount than that allowed under section 39 of the County Courts Act 1959.

Adaptation
of rights of
indemnity.

24.—(1) This section shall have effect for the purpose of adapting in relation to this Part of this Act any right (however and whenever created or arising) which a person may have to be indemnified against expenses incurred by him.

(2) In determining for the purposes of any such right the reasonableness of any expenses, the possibility of avoiding them or part of them by taking advantage of this Part of this Act shall be disregarded.

(3) Where a person having any such right to be indemnified against expenses incurred in connection with any proceedings receives in connection with those proceedings advice or assistance or legal aid, then (without prejudice to the effect of the indemnity in relation to his contribution, if any, under section 4 or 9 above) the right shall inure also for the benefit of the legal aid fund as if any expenses incurred by that fund on behalf of the said person in connection with the advice or assistance or legal aid had been incurred by him.

(4) Where—

(a) a person's right to be indemnified against expenses incurred in connection with any proceedings arises by virtue of an agreement and is subject to any express

PART I

condition conferring on those liable under it any right with respect to the bringing or conduct of the proceedings ; and

- (b) those liable have been given a reasonable opportunity of exercising the right so conferred and have not availed themselves of that opportunity,

the right to be indemnified shall be treated for the purposes of subsection (3) above as not being subject to that condition.

(5) Nothing in subsections (3) and (4) above shall be taken as depriving any person or body of persons of the protection of any enactment or, except as provided in subsection (4), as conferring any larger right to recover money for the benefit of the legal aid fund in respect of any expenses than the person receiving advice or assistance or legal aid would have had if the expenses had been incurred by him.

(6) Where under subsection (3) above the right of a person receiving legal aid to be indemnified against expenses incurred in connection with any proceedings inures for the benefit of the legal aid fund, then for the purposes of section 9 above the net liability of the fund on his account shall be treated as reduced by the amount of any sums recovered for the benefit of the fund by virtue of that right.

25. In this Part of this Act, unless the context otherwise requires— Interpretation
of Part I.

“ advice ” and “ assistance ” mean respectively advice and assistance under this Part of this Act ;

“ the Law Society ” means the society incorporated and regulated by the Royal Charter dated 26th February 1845, and the Royal Charters supplemental thereto dated respectively 26th November 1872, 4th June 1903, 2nd June 1909 and 9th and 10th March 1954, and any reference to the Council of the Law Society shall be taken as a reference to the council elected in accordance with the provisions of those charters ;

“ legal aid ” means legal aid under this Part of this Act ;

“ order for costs ” includes any judgment, order, decree, award or direction for the payment of the costs of one party to any proceedings by another party, whether given or made in those proceedings or not ;

“ person ” does not include a body of persons corporate or unincorporate so as to authorise advice or assistance or legal aid to be given to such a body ;

PART I

“prescribed” means prescribed by regulations ;

“regulations” means regulations made by the Lord Chancellor under this Part of this Act ;

“solicitor” means solicitor of the Supreme Court ;

“tribunal” includes an arbitrator or umpire, however appointed, and whether the arbitration takes place under a reference by consent or otherwise.

Appeals in
forma pauperis
to Privy
Council.

26. No person shall after the coming into force of this section be admitted in the Judicial Committee of the Privy Council to bring or defend any appeal in forma pauperis.

Application to
Crown.

27. This Part of this Act binds the Crown.

PART II

LEGAL AID IN CRIMINAL PROCEEDINGS AND PROCEEDINGS
RELATING TO CHILDREN AND YOUNG PERSONS

Legal aid

Power to
order legal
aid to be
given.

28.—(1) The following provisions of this section shall have effect with respect to the giving of legal aid in connection with criminal proceedings and the proceedings mentioned in subsections (3) and (6) below, but any power conferred by those provisions to give such aid shall be exercisable only in the circumstances mentioned in subsection (1) of section 29 below and subject to the provisions of subsections (2) to (4) of that section.

(2) Where a person is charged with an offence before a magistrates' court or appears or is brought before a magistrates' court to be dealt with, the court may order that he shall be given legal aid for the purpose of the proceedings before the court and any juvenile court to which the case is remitted in pursuance of section 56(1) of the Children and Young Persons Act 1933.

1933 c. 12.

(3) Where a person—

1969 c. 54.

(a) is or is to be brought before a juvenile court under section 1 of the Children and Young Persons Act 1969 ; or

(b) is the subject of an application to a magistrates' court under section 15 or 21 of that Act ; or

(c) is or is to be brought before a juvenile court under section 31 of that Act,

the court may order that he shall be given legal aid for the purpose of proceedings before the court and, in a case falling

within paragraph (a) above, before any juvenile court to which the case is remitted.

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(4) Where a person makes an application to a magistrates' court under section 37 of the Powers of Criminal Courts Act 1973 c. 62. 1973 (review of compensation orders), the court may order that he shall be given legal aid for the purpose of the proceedings before the court.

(5) Where a person convicted or sentenced by a magistrates' court desires to appeal to the Crown Court, either of those courts may order that he shall be given legal aid for the purpose of the appeal, and, where any such person gives notice of appeal, either of those courts may order that the other party to the appeal shall be given legal aid for the purpose of resisting the appeal.

(6) Where a person desires to appeal to the Crown Court in pursuance of section 2(12), 3(8), 16(8), 21(4) or 31(6) of the Children and Young Persons Act of 1969, the Crown Court 1969 c. 54. or the court from whose decision the appeal lies may order that he be given legal aid for the purposes of the appeal.

(7) Where a person is committed to or appears before the Crown Court for trial or sentence, or appears or is brought before the Crown Court to be dealt with, the court which commits him or the Crown Court may order that he shall be given legal aid for the purpose of the trial or other proceedings before the Crown Court.

(8) Where a person desires to appeal to the Court of Appeal under Part I of the Criminal Appeal Act 1968, the criminal 1968 c. 19. division of that court may order that he shall be given legal aid for the purpose of the appeal and any proceedings preliminary or incidental thereto.

(9) Where a person is convicted by a court-martial and desires to appeal to the Courts-Martial Appeal Court, the latter court may order that he shall be given legal aid for the purpose of the appeal and any proceedings preliminary or incidental thereto.

(10) Where either party to an appeal to the criminal division of the Court of Appeal or the Courts-Martial Appeal Court desires to appeal to the House of Lords from a decision of one of those courts, the court which gave the decision may order that the person to whose conviction or sentence the appeal relates shall be given legal aid for the purpose of the appeal and any proceedings preliminary or incidental thereto.

(11) Where the criminal division of the Court of Appeal or the House of Lords orders a person to be retried by the

PART II
1968 c. 19.

Crown Court under section 7 of the Criminal Appeal Act 1968 (new trials in cases of fresh evidence), the Court of Appeal or the House of Lords, as the case may be, or the Crown Court may order that he shall be given legal aid for the purpose of the retrial.

(12) In the following provisions of this Part of this Act "legal aid order" means an order made under any provision of this section and "legally assisted person" means a person to whom legal aid is ordered to be given by such an order.

Circumstances
in which
legal aid may
be ordered to
be given.

29.—(1) Subject to the following provisions of this section, the power to make a legal aid order shall be exercisable by a court having that power under section 28 above where it appears to the court desirable to do so in the interests of justice, and a court having that power shall make such an order—

- (a) where a person is committed for trial on a charge of murder ; or
- (b) where the prosecutor appeals or applies for leave to appeal from the criminal division of the Court of Appeal or the Courts-Martial Appeal Court to the House of Lords.

(2) A court shall not make a legal aid order for the giving of aid to any person for any purpose unless it appears to the court that his means are such that he requires assistance in meeting the costs which he may incur for that purpose.

(3) A court may refuse to make a legal aid order for the giving of aid to any person unless he first makes a payment on account of any contribution towards costs which he may be liable to make under section 32 below, but shall only refuse to do so if it appears to the court from a statement furnished by him under subsection (4) below or otherwise that it is likely that he will be required to make such a contribution and that he has the means to make an immediate payment.

(4) Without prejudice to subsection (2) above, before a court makes a legal aid order for the giving of aid to any person, the court shall require him to furnish a written statement of his means in a prescribed form.

(5) Subsections (3) and (4) above shall have effect in their application to a person who has not attained the age of sixteen, as if the words "he", "him" and "his" referred to that person and a person who is an appropriate contributor in relation to him or such of them as the court selects, and as if for the word "shall" in subsection (4) there were substituted

the word "may"; and the court may require that a statement furnished by an appropriate contributor in pursuance of subsection (4) shall specify both his means and those of the person who has not attained the age of sixteen.

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(6) Where a doubt arises whether a legal aid order should be made for the giving of aid to any person, the doubt shall be resolved in that person's favour.

30.—(1) For the purposes of this Part of this Act legal aid, in relation to any proceedings to which a person is a party, shall be taken, subject to the following provisions of this section, as consisting of representation by a solicitor and counsel assigned by the court, including advice on the preparation of that person's case for those proceedings. Scope of legal aid and supplementary provisions as to legal aid orders.

(2) Notwithstanding anything in subsection (1) above, legal aid ordered to be given for the purposes of any proceedings before a magistrates' court shall not include representation by counsel except—

(a) in the case of any indictable offence, where the court is of the opinion that, because of circumstances which make the case unusually grave or difficult, representation by both solicitor and counsel would be desirable; and

(b) in the case of proceedings under section 1 of the Children and Young Persons Act 1969, where it is alleged that the condition set out in subsection (2)(f) of that section is satisfied in consequence of an indictable offence and the court is of such opinion as is mentioned in paragraph (a) above. 1969 c. 54.

(3) Where the Crown Court makes a legal aid order under section 28(5), (6) or (7) above, the court may, in cases of urgency where it appears to the court that there is no time to instruct a solicitor, order that the legal aid to be given shall consist of representation by counsel only, and where a magistrates' court or the Crown Court makes a legal aid order under any of those subsections for the purpose of proceedings in the Crown Court, being proceedings at which solicitors have a right of audience, the court may order that the legal aid to be given shall consist of representation by a solicitor only.

(4) Where a court makes a legal aid order under section 28(8) or (9) above, the court may order that the legal aid to be given shall consist of representation by counsel only.

(5) A legal aid order under section 28(2) or (3) above for the purpose of proceedings before a magistrates' court shall be

D

PART II

authority for the solicitor assigned by the court to give advice on the question whether there appear to be reasonable grounds of appeal from any determination in those proceedings and assistance by him in the giving of a notice of appeal or making of an application for a case to be stated, being a notice given or application made within the ordinary time for doing so.

(6) Where legal aid is ordered to be given to any person for the purpose of an appeal to the Crown Court by a legal aid order under section 28(5) or (6) above and the Crown Court—

- (a) in the case of an order under section 28(5), confirms or varies his conviction or sentence, or
- (b) in the case of an order under section 28(6), dismisses the appeal or otherwise alters the order to which the appeal relates,

the legal aid order shall be authority for counsel or the solicitor assigned to him to give advice on the question whether there appear to be reasonable grounds of appeal from the decision of the Crown Court and, if such grounds appear to exist, assistance in the making of an application for a case to be stated.

(7) Legal aid which may be ordered to be given to any person for the purpose of any proceedings by a legal aid order under section 28(7) above shall, in the event of his being convicted or sentenced in those proceedings, include advice on the question whether there appear to be reasonable grounds of appeal and—

- (a) if such grounds appear to exist, assistance in the preparation of an application for leave to appeal or in the giving of a notice of appeal ;
- (b) while that question is being considered, assistance in the making of a provisional application or the giving of a provisional notice.

(8) Legal aid which may be ordered to be given to any person for the purpose of any appeal by a legal aid order under section 28(8) or (9) above may, without prejudice to subsection (1) above, consist in the first instance of advice, by counsel or a solicitor assigned by the court, on the question whether there appear to be reasonable grounds of appeal and assistance by that solicitor in the preparation of an application for leave to appeal or in the giving of a notice of appeal.

(9) A legal aid order under section 28(8) or (9) above may, if the court thinks fit, include provision that the legal aid ordered to be given shall be deemed to include the like advice and assistance previously given by counsel or a solicitor not then assigned by the court.

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(10) The reference in section 28(2) above to a person charged with an offence before a magistrates' court includes a reference to a person summoned or arrested for an offence and under a duty to appear or a liability to be brought before a magistrates' court in respect of that offence; and the power to make a legal aid order under that subsection shall, in the case of a person arrested for an offence who has not appeared or been brought before a magistrates' court, be exercisable by the magistrates' court to which an application for legal aid is made in pursuance of regulations under this Part of this Act.

(11) Any reference in section 28(2) above to a person charged with an offence includes a reference to a person against whom proceedings are instituted under section 91 of the Magistrates' Courts Act 1952 (binding over) in respect of an actual or apprehended breach of the peace or other misbehaviour, and any such reference to a person brought before a magistrates' court to be dealt with includes a reference to a person brought before a metropolitan stipendiary magistrate to be dealt with under section 9 of the Extradition Act 1870 or section 5 of the Fugitive Offenders Act 1881 (hearing of extradition and similar proceedings). 1952 c. 55. 1870 c. 52. 1881 c. 69.

(12) In section 28 above—

“dealt with” means dealt with under section 6, 8, 16, 17(1) or (2), 23 or 27 of the Powers of Criminal Courts Act 1973 c. 62. 1973, or dealt with for a failure to comply with a condition of a recognizance to keep the peace or be of good behaviour;

“sentence” includes an order of a court in respect of which an appeal lies (with or without leave) to another court, and “sentenced” shall be construed accordingly.

31.—(1) A court having power to make a legal aid order may on the application of the legally assisted person or otherwise amend any such order by substituting for any legal representative or representatives previously assigned to him any legal representative or representatives whom the court could have assigned to him if it had then been making the legal aid order. Amendment and revocation of legal aid orders.

(2) A court having power to make a legal aid order may revoke any such order—

- (a) on the application of the legally assisted person; or
- (b) if the only legal representative or all the legal representatives for the time being assigned to him withdraws or withdraw from the case and it appears to the court

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that, because of his conduct, it is not desirable to amend the order under subsection (1) above.

(3) The amendment or revocation of a legal aid order under this section shall not affect the right of any legal representative previously assigned to the legally assisted person to remuneration for work done before the date of the amendment or revocation, as the case may be, but where a court revokes such an order, the court may make a legal aid contribution order under section 32 below as if it had disposed of the case.

Contributions from persons receiving legal aid

Power to
order payment
of contri-
butions.

32.—(1) A person to whom legal aid has been ordered to be given for any purpose by a legal aid order may be ordered by a court having power to do so to make such contribution to the clerk of the collecting court in respect of the costs incurred on his behalf for that purpose as appears to the court making the order reasonable having regard to his resources and commitments or, if it so appears, to pay the whole amount of those costs to that clerk; and in this Part of this Act any reference to a contribution towards costs shall be construed as including a reference to a payment of the whole amount thereof.

(2) In a case where a legally assisted person has not attained the age of sixteen, the power conferred by subsection (1) above to order him to pay a contribution in respect of the relevant costs shall include power to order any person who is an appropriate contributor in relation to him to pay such a contribution; and for the purposes of any order proposed to be made by virtue of this subsection in connection with a legal aid order, an appropriate contributor who has failed to furnish a statement which he was required to furnish in pursuance of section 29(4) above in connection with the legal aid order shall be deemed to have resources and commitments which are such that he may reasonably be ordered to pay the whole amount of the costs in question.

(3) A person may be ordered under this section to make a contribution towards costs in one sum or by instalments.

(4) An order under this section (in this Part of this Act referred to as "legal aid contribution order") may be made—

(a) where the legal aid was ordered to be given for the purpose of proceedings before a magistrates' court and the legally assisted person is not committed to the Crown Court for trial or sentence, by that magistrates' court, or any juvenile court to which the case is

remitted in pursuance of section 56(1) of the Children and Young Persons Act 1933 or section 2(11) of the Children and Young Persons Act 1969, after disposing of the case ;

PART II

1933 c. 12.

- (b) where the legal aid was ordered to be given for the purpose of proceedings before a magistrates' court and the legally assisted person is committed to the Crown Court for trial or sentence, by the Crown Court after disposing of the case ;
- (c) where the legal aid was ordered to be given for the purpose of an appeal to, or a trial or other proceedings before, the Crown Court, by that court after disposing of the appeal or hearing as the case may be ;
- (d) where the legal aid was ordered to be given for the purpose of an appeal to the Court of Appeal, the Courts-Martial Appeal Court or the House of Lords, by the court in question or that House, as the case may be, after disposing of the appeal.

(5) In this Part of this Act "collecting court", in relation to a legal aid contribution order, means a magistrates' court specified in that order ; and the court so specified shall be—

- (a) in a case where the court making the order is itself a magistrates' court, that court ;
- (b) in a case where the order is made on an appeal from a magistrates' court, or in respect of a person who was committed (whether for trial or otherwise by a magistrates' court) to the Crown Court, the court from which the appeal is brought or, as the case may be, which committed him ; and
- (c) in any other case, a magistrates' court nominated by the court making the order.

33.—(1) At any time after a person has applied for legal aid a court having power to make a legal aid order under section 28 above or a legal aid contribution order under section 32 above may, and shall on an application made by a legally assisted person or a person who is an appropriate contributor in relation to him in the prescribed circumstances and within the prescribed time, request the Supplementary Benefits Commission to inquire into the means of that person and any such contributor or of either or any of them and the Commission shall comply with the request and report to the court.

Means
enquiry by
Supplemen-
tary Benefits
Commission.

(2) Where the court receives a report under subsection (1) above before making a legal aid contribution order under section 32 above, the court shall in determining whether or not to make such an order and in determining the terms of the order have regard to the report.

PART II

(3) Where the court receives any such report after making a legal aid contribution order under section 32 above, it shall reconsider the order and may vary its terms in the light of the report.

**Computation
of resources.**

34.—(1) Regulations made by the Secretary of State with the consent of the Treasury may make provision as to the manner in which a person's resources and commitments are to be taken into account for the purpose of determining whether his means are such that he or any other person should be given legal aid under this Part of this Act and for the purpose of determining the amount of the contribution which he may be required to make towards the costs of the legal aid.

(2) Except in so far as regulations under subsection (1) above otherwise provide, any resources and commitments of a person's wife or husband shall be treated for the purposes mentioned in that subsection as that person's resources and commitments, and the regulations may also—

- (a) make provision, in relation to minors, for taking into account the resources and commitments of other persons ; and
- (b) make provision as to the manner in which the resources and commitments of other persons are to be taken into account for those purposes.

**Enforcement
of Legal aid
contribution
orders.**

35.—(1) Subject to subsection (4) below, any sum required to be paid by a legal aid contribution order shall be recoverable as if it had been adjudged to be paid by an order of the collecting court, subject to and in accordance with the provisions of Schedule 3 to this Act.

(2) Without prejudice to subsection (1) above, but subject to the following subsections, payment of any sum required to be paid by a legal aid contribution order shall be enforceable by the High Court or a county court (otherwise than by issue of a writ of fieri facias or other process against goods or by imprisonment or attachment of earnings) as if the sum were due to the clerk of the collecting court in pursuance of a judgment or order of the High Court or county court, as the case may be.

(3) Subsection (2) above shall not authorise the enforcement by a county court of payment of any sum exceeding the limit for the time being in force under section 40 of the County Courts Act 1959 on the amount of any penalty recoverable by statute in a county court.

(4) Where a legal aid contribution order has been made in respect of a member of Her Majesty's armed forces and the Secretary of State notifies the collecting court that any sum

PART II

payable under the order will be recovered by deductions from the person's pay, the collecting court shall not enforce payment of any sum unless and until the Secretary of State subsequently notifies it that the person is no longer a member of those forces and that sum has not been fully recovered.

(5) The clerk of the collecting court shall not take proceedings by virtue of subsection (2) above to recover any sum required to be paid by a legal aid contribution order unless authorised to do so by the court.

(6) Any expenses incurred by the clerk of a magistrates' court in recovering any sum so required to be paid shall be treated for the purposes of Part IV of the Justices of the Peace Act 1949 as expenses of the magistrates' court committee. 1949 c. 101.

(7) Any sum paid by way of contribution towards costs to a clerk of a magistrates' court shall be paid by him to the Secretary of State, and subsection (1) of section 27 of the Justices of the Peace Act 1949 (application of fines, fees, etc.) shall not apply to any such sum, but subsection (9) of that section (regulations as to accounts) shall apply to any such sum as it applies to a sum payable under subsection (1).

(8) Nothing in this section applies to a legal aid contribution order made before 2nd August 1971; and in relation to such an order the enactments in force immediately before that day and relating to the enforcement of such an order shall continue to apply notwithstanding any repeal effected by the Administration of Justice Act 1970, but without prejudice to section 1(5) of the Attachment of Earnings Act 1971. 1970 c. 31.
1971 c. 32.

36.—(1) Where a legally assisted person is given legal aid for the purposes of any proceedings, any sums due under an order for costs made in his favour with respect of those proceedings shall be paid— Recovery of costs and refund of contributions.

- (a) in the case of proceedings in a magistrates' court, into the legal aid fund;
- (b) in the case of proceedings not falling within paragraph (a) above, to the Secretary of State.

(2) If the total contribution made by or in respect of a legally assisted person in respect of any costs is more than the difference between the costs incurred on his behalf and the sums due in respect of costs under any such order as is mentioned in subsection (1) above, the excess shall be repaid—

- (a) where the contribution was made by one person only, to him; and

PART II

- (b) where the contribution was made by two or more persons, to them in proportion to the amounts contributed by them.

Miscellaneous and supplemental

Payment of costs of legal aid.

37.—(1) Where a legal aid order has been made for the giving of aid to a legally assisted person, the costs of the legal aid given to him shall be paid—

- (a) in the case of proceedings in a magistrates' court, out of the legal aid fund ;
 (b) in the case of any proceedings not falling within paragraph (a) above, by the Secretary of State.

(2) Subject to regulations under section 39 below, the costs of legal aid ordered to be given to a legally assisted person for the purpose of any proceedings shall include sums on account of the fees payable to any counsel or solicitor assigned to him and disbursements reasonably incurred by any such solicitor for or in connection with those proceedings.

(3) Costs required by this section to be paid in respect of any proceedings shall not include any sum in respect of allowances to witnesses attending to give evidence in those proceedings in any case where such allowances are payable under the provisions of any other enactment.

(4) Costs required by this section to be paid out of the legal aid fund shall be paid in like manner as costs which fall to be so paid under Part I of this Act and—

- (a) the functions of the Law Society under that Part shall include securing the payment of costs so required and the recovery of sums due to the legal aid fund under this Part ; and
 (b) references to that Part in sections 15(3) to (5), 17(2) to (8) and 19 above shall be construed as including references to this Part of this Act, so far as it relates to the payment of such costs and the recovery of such sums.

(5) Any sums required by the Secretary of State for making payments under this section shall be defrayed out of moneys provided by Parliament.

Solicitors and counsel.

38.—(1) Any practising barrister or solicitor may be assigned to act for a legally assisted person unless he is for the time being excluded by virtue of subsection (2) below as being unfit so to act by reason of his conduct when acting for legally assisted persons or his professional conduct generally.

PART II

(2) The Lord Chancellor may make rules—

(a) empowering a tribunal established under the rules—

(i) to hear and determine complaints against a barrister or solicitor ;

(ii) to exclude from acting for legally assisted persons (whether permanently or temporarily) any barrister or solicitor against whom a complaint is proved and, in the case of a member of a firm of solicitors, any other person who is for the time being a member of the same firm ;

(iii) to reduce or cancel the remuneration otherwise payable to any such barrister or solicitor or to his firm under a legal aid order ;

(iv) to order any such barrister or solicitor to pay all or any of the costs of the proceedings on any such complaint ;

(b) regulating the making of complaints to that tribunal and the disposal by the tribunal of complaints so made ; and

(c) providing for the notification of the decisions of that tribunal to all courts which have power under section 28 above to make a legal aid order.

(3) Where a barrister or solicitor is aggrieved by any decision of the tribunal excluding him (whether permanently or temporarily) from acting for legally assisted persons, he may appeal against the decision to the High Court, and the High Court (whose decision shall be final) may confirm or quash the decision appealed against or may substitute such other decision as the court thinks fit.

(4) Provision shall be made by rules of court for regulating appeals to the High Court under subsection (3) above, and those rules shall provide for limiting the time within which appeals may be brought.

(5) The expenses of any tribunal established by virtue of this section shall be defrayed out of the legal aid fund and—

(a) the functions of the Law Society under Part I of this Act shall include securing the payment of such expenses ; and

(b) references to that Part in sections 15(3) to (5), 17(2) to (8) and 19 above shall be construed as including references to this subsection.

(6) The power of the Lord Chancellor to make rules under this section shall be exercisable by statutory instrument.

39.—(1) Without prejudice to any other provision of this Regulations, Part of this Act authorising the making of regulations or rules,

PART II

the Secretary of State may make such regulations as appear to him necessary or desirable for giving effect to this Part of this Act or for preventing abuses thereof and, in particular, any such regulations may—

- (a) make provision as to the manner of making applications for legal aid under this Part of this Act and the time when such applications may be made and disposed of ;
- (b) provide for the exercise of the powers of any court under this Part of this Act by a person entitled to sit as a member of the court or any officer of the court ;
- (c) confer on any person aggrieved by a decision of any such officer exercising those powers a right to have the matter determined by the court or, if it is so prescribed, by a person entitled to sit as a member of the court ;
- (d) require any officer of a prescribed court to report to the court or any person entitled to sit as a member of the court any case in which it appears to him that, although no application has been made for the purpose, a legal aid order ought to be made under section 28 above ;
- (e) make provision with respect to the manner in which counsel and solicitors are to be assigned to legally assisted persons in pursuance of legal aid orders ;
- (f) prescribe rates or scales of payment of any costs payable in accordance with section 37(1) above and the conditions under which such costs may be allowed ;
- (g) provide for the assessment and taxation of such costs and for the review of any assessment made or taxation carried out under the regulations ;
- (h) provide for the giving of information, by courts by which, or officers by whom, legal aid orders or orders for the payment of costs under the Costs in Criminal Cases Act 1973 are made, to persons responsible for the administration of the legal aid fund and to the Secretary of State and, where a legal aid contribution order is made, to the clerk of the collecting court ; and
- (i) prescribe the forms to be used for the purposes of this Part of this Act.

1973 c. 14.

(2) Subsection (1)(b) above shall have effect in relation to the criminal division of the Court of Appeal as if for the references to a person entitled to sit as a member of the court there were substituted a reference to any judge of the court or of the High Court.

(3) The Secretary of State in making regulations under this section as to the amounts payable to counsel or a solicitor

assigned to give legal aid under this Part of this Act, and any person by whom any such amount falls to be assessed, taxed or reviewed under the regulations, shall have regard to the principle of allowing fair remuneration according to the work actually and reasonably done.

PART II

(4) Regulations under this section may make different provision for different cases.

(5) Any power to make regulations conferred on the Secretary of State by this Part of this Act shall be exercisable by statutory instrument; and regulations so made shall be subject to annulment in pursuance of a resolution of either House of Parliament.

40.—(1) In this Part of this Act, except so far as the context otherwise requires— Interpretation
of Part II.

“appropriate contributor”, in relation to a person who has not attained the age of sixteen, means his father, any person who has been adjudged to be his putative father and (whether or not he is legitimate) his mother;

“committed for sentence” means committed under the Vagrancy Act 1824, section 28 or 29 of the Magistrates’ Courts Act 1952, section 67 of the Mental Health Act 1959, section 62(6) of the Criminal Justice Act 1967 or section 6, 8, 16, 17(2)(b) or 24 of the Powers of Criminal Courts Act 1973; 1824 c. 83.
1952 c. 55.
1959 c. 72.
1967 c. 80.
1973 c. 62.

“legal aid fund” means the legal aid fund established under Part I of this Act;

“prescribed” means prescribed by regulations made under this Part of this Act.

(2) Any power to make an application in pursuance of this Part of this Act which is exercisable by a person who has not attained the age of seventeen shall also be exercisable by his parent or guardian on his behalf, without prejudice to any powers of the parent or guardian apart from this subsection; and in this subsection “guardian” has the same meaning as in section 70(2) of the Children and Young Persons Act 1969. 1969 c. 54.

(3) A person who attains the age of sixteen after a legal aid order is made in respect of him or, in a case where such an order is made in pursuance of an application, after the application is made, shall be treated for the purposes of this Part of this Act, in relation to the order, as not having attained that age.

(4) Any reference in this Part of this Act to a provision of the Powers of Criminal Courts Act 1973 shall be construed, in relation to any time before the coming into force of that provision, as a reference to the corresponding provision of the enactments repealed by that Act.

PART III

MISCELLANEOUS AND GENERAL

Consequential
amendments.

41. The enactments specified in Schedule 4 to this Act shall have effect subject to the amendments there specified, being amendments consequential upon the provisions of this Act.

Repeals,
revocations
and savings.

42.—(1) The enactments specified in Part I of Schedule 5 to this Act are hereby repealed to the extent specified in the third column of that Part; and the regulations specified in Part II of that Schedule are hereby revoked.

(2) In so far as any regulation, rule or scheme made or having effect as if made, or other thing done or having effect as if done, under or in pursuance of any of the enactments repealed by this Act (in this section referred to as “the repealed enactments”) could have been made or done under or in pursuance of a corresponding provision of this Act, it shall not be invalidated by the repeal but shall have effect as if made or done under or in pursuance of that corresponding provision; and anything begun under any of the repealed enactments may be continued under any corresponding provision of this Act as if begun under that provision.

(3) Where any enactment or document refers, either expressly or by implication, to any of the repealed enactments, the reference shall, except where the context otherwise requires, be construed as a reference to this Act or to the corresponding provision of this Act.

1889 c. 63.

(4) Nothing in this Act shall be taken as prejudicing the operation of section 38 of the Interpretation Act 1889 (which relates to the effect of repeals).

Short title,
construction,
commence-
ment and
extent.

43.—(1) This Act may be cited as the Legal Aid Act 1974.

(2) A reference in this Act to any enactment shall, unless the context otherwise requires, be construed as a reference to that enactment as amended, extended or applied under any other enactment including this Act.

(3) Except as provided by subsection (4) below, this Act shall come into force on the expiration of the period of three months beginning with the day on which it is passed.

(4) The following provisions of this Act, that is to say—

(a) section 16;

(b) section 26; and

(c) in Part I of Schedule 1, paragraphs 1(b), 1(c), 3(e) and 4, shall come into force on such day as the Lord Chancellor may by order made by statutory instrument appoint; and different days may be appointed under this subsection for, or for different purposes of, any one or more of those provisions. **PART III**

(5) This Act does not extend to Scotland or to Northern Ireland.

SCHEDULES

Section 7.

SCHEDULE 1

PROCEEDINGS FOR WHICH LEGAL AID MAY BE GIVEN UNDER PART I

PART I

DESCRIPTION OF PROCEEDINGS

1. Proceedings in, or before any person to whom a case is referred in whole or in part by, any of the following courts, namely—

- (a) the House of Lords in the exercise of its jurisdiction in relation to appeals from courts in England and Wales ;
- (b) the House of Lords in the exercise of its jurisdiction in relation to appeals from courts in Northern Ireland ;
- (c) the Judicial Committee of the Privy Council ;
- (d) the Court of Appeal ;
- (e) the High Court ;
- (f) any county court.

2. Proceedings in the Crown Court or in a magistrates' court for or in relation to an affiliation order within the meaning of the Affiliation Proceedings Act 1957.

1957 c. 55.

3. The following proceedings in a magistrates' court, namely—

1960 c. 48.

(a) proceedings for or in relation to an order under the Matrimonial Proceedings (Magistrates' Courts) Act 1960 ;

1971 c. 3.

(b) proceedings under the Guardianship of Minors Act 1971 or, after the coming into force of Part I of the Guardianship Act 1973, under the Guardianship of Minors Acts 1971 and 1973 ;

1973 c. 29.

(c) proceedings under section 2 or 4 of the Children Act 1948, section 43 of the National Assistance Act 1948, section 22 of the Maintenance Orders Act 1950, section 4 of the Maintenance Orders Act 1958, section 3 of the Children and Young Persons Act 1963 or section 23 of the Ministry of Social Security Act 1966 ;

1948 c. 43.

1948 c. 29.

1950 c. 37.

1958 c. 39.

1963 c. 37.

1966 c. 20.

(d) proceedings in which a parent or guardian opposes the making of an adoption order and the court is asked to dispense with his consent under section 5 of the Adoption Act 1958 ;

1958 c. 5

(7 & 8 Eliz. 2).

(e) proceedings under Part I of the Maintenance Orders (Reciprocal Enforcement) Act 1972 relating to a maintenance order made by a court of a country outside the United Kingdom.

1972 c. 18.

4. Proceedings before a coroner.

5. Proceedings in the Lands Tribunal.

6. Proceedings in the National Industrial Relations Court.

7. Proceedings before a Commons Commissioner appointed under section 17(1) of the Commons Registration Act 1965.

1965 c. 64.

8. Proceedings in the Restrictive Practices Court under Part III of the Fair Trading Act 1973, and any proceedings in that court in consequence of an order made, or undertaking given to the court, under that Part of that Act.

1973 c. 41.

PART II

SCH. 1

EXCEPTED PROCEEDINGS

1. Proceedings wholly or partly in respect of defamation, but so that the making of a counterclaim for defamation in proceedings for which legal aid may be given shall not of itself affect any right of the defendant to the counterclaim to legal aid in the proceedings and so that legal aid may be granted to enable him to defend the counterclaim.

2. Proceedings wholly or partly in respect of the loss of the services of a woman or girl in consequence of her rape or seduction.

3. Relator actions.

4. Proceedings for the recovery of a penalty where the proceedings may be taken by any person and the whole or part of the penalty is payable to the person taking the proceedings.

5. Election petitions under the Representation of the People Act 1949 c. 68. 1949.

6. In a county court, proceedings for or consequent on the issue of a judgment summons and, in the case of a defendant, proceedings where the only question to be brought before the court is as to the time and mode of payment by him of a debt (including liquidated damages) and costs.

7. Proceedings incidental to any proceedings excepted by this Part of this Schedule.

SCHEDULE 2

Section 10.

REMUNERATION OF PERSONS GIVING LEGAL AID
UNDER PART I

1.—(1) The sums allowed to counsel in connection with proceedings in the House of Lords, the Court of Appeal or the High Court shall be 90 per cent. of the amount allowed on taxation of the costs.

(2) The sums allowed to counsel in connection with proceedings in a county court shall be the full amount allowed on taxation of the costs.

(3) The sums allowed to counsel in any other case shall be such as may be determined in the prescribed manner.

2.—(1) The sums allowed to a solicitor in connection with proceedings in the House of Lords, the Court of Appeal or the High Court shall be the full amount allowed on taxation of the costs on account of disbursements and 90 per cent. of the amount so allowed on account of profit costs.

(2) The sums allowed to a solicitor in connection with proceedings in a county court shall be the full amount allowed on taxation of the costs whether on account of disbursements or of profit costs.

SCH. 2

(3) Where a solicitor has acted as agent for another, the sums allowed under the preceding provisions of this paragraph shall be the aggregate amount allowed them, but may be divided between them as they may agree.

(4) The sums allowed to a solicitor in any other case shall be such as may be determined in the prescribed manner.

3. For the purpose of sub-paragraph (1) or (2) of paragraph 1 above, counsel's fees shall be taxed as if they had been paid by the solicitor, but shall not by reason thereof be treated as disbursements for the purpose of paragraph 2 above.

4.—(1) Subject to paragraph 3 above, costs shall be taxed for the purposes of this Schedule according to the ordinary rules applicable on a taxation as between solicitor and client where the costs are to be paid out of a common fund in which the client and others are interested; but no question shall be raised as to the propriety of any act for which prior approval was obtained as required by regulations.

1957 c. 27.

(2) The reference in sub-paragraph (1) above to the rules applicable on such a taxation as there mentioned, in relation to proceedings in a county court, includes in particular subsection (4) of section 73 of the Solicitors Act 1957 (which limits the amount allowable for any item to that allowable as between party and party), but notwithstanding anything in that sub-paragraph or that subsection the amount allowed on such a taxation for the purposes of this Schedule may include such additions (if any) as may be prescribed in respect of matters preliminary to any proceedings in a county court.

5. Regulations may provide that for any percentage specified in paragraph 1(1) or 2(1) above there shall be substituted such other percentage, not less than 85 per cent., as may be prescribed by the regulations.

6. Regulations may also provide that for the purposes of this Schedule, instead of costs being taxed in the ordinary way,—

- (a) they shall be taxed by the prescribed person (whether an officer of a court or not); or
- (b) the amount of the costs shall be fixed (whether by an officer of a court or not) by an assessment made without a taxation but with a view to allowing as nearly as may be the same amount as on a taxation.

Section 35.

SCHEDULE 3

ENFORCEMENT OF LEGAL AID CONTRIBUTION ORDERS

General provisions as to enforcement

1. In this Schedule "collecting court" and "legal aid contribution order" have the same meanings as in section 32 above.

2. The collecting court may, in relation to a legal aid contribution order, exercise the power of section 63 of the Magistrates' Courts Act 1952 (power to dispense with immediate payment); and for the purposes of that section any provision made by the court which made the order as to time for payment, or payment by instalments, shall be treated as made by the collecting court. SCH. 3
1952 c. 55.

3. Sections 74 (complaint for arrears), 75 (effect of committal on arrears) and 76 (power to remit arrears) of the Magistrates' Courts Act 1952 shall apply as if a legal aid contribution order were enforceable as an affiliation order.

4. Any costs awarded, under section 55 of the Magistrates' Courts Act 1952, on the hearing of a complaint for the enforcement of a legal aid contribution order shall be enforceable as a sum required to be paid by that order.

5. Sections 17 and 18 of the Maintenance Orders Act 1958 (not more than one committal for same arrears, and power to review committals) shall apply as if a legal aid contribution order were a maintenance order. 1958 c. 39.

6. Section 68 of the Magistrates' Courts Act 1952 (application of money found on defaulter to satisfy sum adjudged) shall apply as if a legal aid contribution order were enforceable as an affiliation order.

Transfer of enforcement proceedings to different court

7.—(1) Where it appears to the collecting court that a person subject to a legal aid contribution order is residing in a petty sessions area other than that for which the court acts, the court may make a transfer order under this paragraph, that is to say an order making payment under the legal aid contribution order enforceable in that other petty sessions area (which area shall be specified in the transfer order).

(2) As from the date of a transfer order under this paragraph the court which made the order shall cease to be the collecting court for the purposes of the legal aid contribution order and of section 35 above and this Schedule and be replaced as such by a magistrates' court acting for the petty sessions area specified in the transfer order.

SCHEDULE 4

Section 41.

CONSEQUENTIAL AMENDMENTS

1. In the Solicitors Act 1957, in place of the words inserted there by Schedule 2 to the Legal Advice and Assistance Act 1972, there shall be inserted—

- (a) in section 29(4), the words "or acting in the course of employment to which section 16 of the Legal Aid Act 1974 applies";

SCH. 4

(b) in section 30(7), the words "or in employment to which section 16 of the Legal Aid Act 1974 applies" and, in paragraph (b), the words "or in the course of employment to which that section applies".

1967 c. 56.

2. In section 9 of the Matrimonial Causes Act 1967, for the words "section 6(5) of the Legal Aid and Advice Act 1949" there shall be substituted the words "section 10(1) of the Legal Aid Act 1974" and for the words "Schedule 3" there shall be substituted the words "Schedule 2".

1970 c. 31.

3. In section 12(2) of the Administration of Justice Act 1970, for the words "section 76 of the Criminal Justice Act 1967" there shall be substituted the words "section 32 of the Legal Aid Act 1974".

1971 c. 32.

4. In section 25(1) of the Attachment of Earnings Act 1971, for the words "section 76 of the Criminal Justice Act 1967" there shall be substituted the words "section 32 of the Legal Aid Act 1974".

Section 42.

SCHEDULE 5

REPEALS AND REVOCATIONS

PART I

ENACTMENTS REPEALED

Chapter	Short Title	Extent of Repeal
12 & 13 Geo. 6. c. 51.	The Legal Aid and Advice Act 1949.	The whole Act.
5 & 6 Eliz. 2. c. 27.	The Solicitors Act 1957.	Section 74(e).
6 & 7 Eliz. 2. c. 51.	The Public Records Act 1958.	In Schedule 2, the entry relating to section 14 of the Legal Aid and Advice Act 1949.
8 & 9 Eliz. 2. c. 28.	The Legal Aid Act 1960.	The whole Act.
1964 c. 30.	The Legal Aid Act 1964.	The whole Act.
1966 c. 20.	The Ministry of Social Security Act 1966.	In Schedule 6, paragraph 12.
1967 c. 80.	The Criminal Justice Act 1967.	Part IV. In section 100(2), the words "except rules under section 82 of this Act". Section 101 (b). In Schedule 6, paragraph 7.
1969 c. 54.	The Children and Young Persons Act 1969.	Section 33.
1970 c. 31.	The Administration of Justice Act 1970.	Schedule 1. Section 9(4). Section 43. Schedule 10.
1971 c. 3.	The Guardianship of Minors Act 1971.	In Schedule 1, the entry relating to the Legal Aid and Advice Act 1949.
1971 c. 23.	The Courts Act 1971.	In Schedule 6, paragraph 10. In Schedule 8, paragraph 29, in paragraph 48 the words "73(4) (5), (8), 74(3), 76(4)" and the words "73(3), (3B), 74(6), 76(5)" and paragraph 56.

SCH. 5

Chapter	Short title	Extent of repeal
1972 c. 11.	The Superannuation Act 1972.	Section 18(1).
1972 c. 18.	The Maintenance Orders (Reciprocal Enforcement) Act 1972.	Section 43(1).
1972 c. 50.	The Legal Advice and Assistance Act 1972.	The whole Act.
1972 c. 71.	The Criminal Justice Act 1972.	Section 38. In Schedule 5, in the entry relating to the Criminal Justice Act 1967, paragraphs (e) to (g).
1973 c. 29.	The Guardianship Act 1973.	Section 9(2)(a).
1973 c. 41.	The Fair Trading Act 1973.	Section 43(1)(a).
1973 c. 62.	The Powers of Criminal Courts Act 1973.	In Schedule 5, paragraphs 23 to 25.

PART II

REGULATIONS REVOKED

The Legal Aid (Extension of Proceedings) Regulations 1969 (S.I. 1969/921).

The Legal Aid (Extension of Proceedings) Regulations 1970 (S.I. 1970/761).

The Legal Aid (Financial Conditions) Regulations 1970 (S.I. 1970/1707).

In the Legal Aid (General) Regulations 1971 (S.I. 1971/62), regulation 22(10) and (11).

The Legal Aid (Extension of Proceedings) Regulations 1971 (S.I. 1971/1904).

The Legal Aid (Extension of Proceedings) Regulations 1972 (S.I. 1972/1973).

The Legal Aid (Financial Conditions) Regulation 1972 (S.I. 1972/1974).

The Legal Advice and Assistance (Financial Conditions) Regulations 1973 (S.I. 1973/535).

The Legal Aid and Assistance (Financial Conditions) (No. 3) Regulations 1973 (S.I. 1973/1716).

The Legal Aid (Financial Conditions) Regulations 1973 (S.I. 1973/1782).

The Legal Advice and Assistance (Financial Conditions) (No. 2) Regulations 1973 (S.I. 1973/1783).